

Young answer'd, That when he attended upon my Lord Chancellor, Sir *John Trevor's* Man brought a Cabinet, and a Letter to my Lord Chancellor, and entreated me to deliver it, which I did openly; and this was openly done, and this was all I knew of it.

Sir *Edward Coke* said, It was strange to him that this Money should be thus openly deliver'd, and that one *Gardener* should be present at the Payment of the 200 *l.*

Ordered,

That Sir *Robert Philips* do deliver to the Lords this Afternoon the Bishop of *Llandaff's* and *Ambrey's* Letters, and all other Writings that he hath. Then adjourned.

Mercurii 21 Martii, 1620.

Sir *Robert Philips* reports from the Committee to examine *Keeling* and *Churchill*, who informed of many Corruptions against my Lord Chancellor. 1. In the Cause between *Hull* and *Holman*; *Hull* gave or lent my Lord 1000 *l.* since the Suit began. 2. In the Cause between *Wroth* and *Mannering*, there were 100 Pieces given, of which *Hunt* had 20 *l.* 3. *Hoddy* gave a Jewel which was thought to be worth 500 *l.* but he himself said it was a Trifle of 100 *l.* or

200 *l.* Price; it was presented to my Lord Chancellor by Sir *Thomas Peryn* and Sir *Henry Holmes*. 4. In the Cause between *Peacock* and *Reynell*, there was much Money given on both Sides. 5. In the Case of *Barker* and *Bill*; *Barker* said he was 800 *l.* in Gifts since his Suit began. 6. In the Case between *Smithwick* and *Walsh*; *Smithwick* gave 300 *l.* yet my Lord decreed it against him, so he had his Money again by Piece-meal. In this and other Cases my Lord would decree Part; and when he wanted more Money, he would send for more Money, and decree another Part. In most Causes my Lord's Servants have undertaken one Side or another, inso-much as it was usual for Counsel, when their Clients came unto them, to ask what Friend they had at *Tork-House*. 25

Mr. *Meawtys*. Touching the Persons that inform, I would entreat this honourable House to consider, that *Keeling* is a common Solicitor, (to say no more of him;) *Churchill* a guilty Register by his own Confession. I know that Fear of Punishment, and Hopes of lessening it, may make them to say much, yea, more than is Truth. For my own Part, I must say, I have been an Observer of my Lord's Proceedings; I know he hath
 sown

sown a good Seed of Justice, and I hope that it will prove, that the envious Man hath sown these Tares. I humbly desire that those Generals may not be sent up to the Lords, unless these Men will testify them in Particular.

Ordered,

That a Message be sent to the Lords by Sir Robert Philips to relate the Case of the Lady Wharton, and the Informations of Churchill.

Sir Robert Philips reports from the Lords, that they acknowledged the great Care of this House in these important Businesses; Thanks for the Correspondence of this House with them, assure the like from them for ever to this House. In these and all other Things will advise, and return Answer as soon as possible. Then adjourned.

Jevis 3 Maii, 1621.

A Message from the Lords, that they were ready to pronounce Sentence against the late Lord Chancellor, if it pleased the House with the Speaker to come and demand Judgment.

So the House went up, and the Speaker demanded Judgment,

The Lord Chief Justice (being Speaker in the Higher House) said, that the
Lords

Lords had duly considered of the Complaints presented by the Commons against the Lord *Verulam*, Viscount *St. Albans*, late Lord Chancellor, and have found him guilty, as well by Oath of Witnesses, as by his own Confession, of those and many other Corruptions, for which they have sent for him to come and answer; and upon his sincere Protestation of Sickness, we admitting his Excuse of Absence, have yet notwithstanding proceeded to his Judgment, *viz.*

That he be fined 40000 *l.* to be imprisoned in the Tower during the King's Pleasure, made incapable to bear Office in the Common-Wealth, never to sit in Parliament, nor to come within the Verge, which is within twelve Miles, of the Court.





The Humble Submission
and Supplication of the
Lord Chancellor B. A.
CON to the House of
LORDS.

May it please your Lordships,

I Shall humbly crave at your Hands a benign Interpretation of that which I shall now write: For Words that come from wasted Spirits, and oppressed Minds, are more safe in being deposited to a noble Construction, than being circled with any reserved Caution.

This being moved (and, as I hope, obtained of your Lordships) as a Protection to all that I shall say, I shall go on; but with a very strange Entrance, as may seem to your Lordships, at first: For, in the midst of a State of as great Affliction as, I think, a mortal Man can endure; (Honneur being above Life)

I shall begin with the professing of Gladness in some Things.

The first is, That hereafter the Greatness of a Judge or Magistrate shall be no Sanctuary or Protection to him against Guiltiness, which is the Beginning of a golden Work.

The next, That after this Example, it is like that Judges will fly from any Thing in the Likeness of Corruption (though it were at a great Distance) as from a Serpent ; which tends to the purging of the Courts of Justice, and reducing them to their true Honour and Splendour. And in these two Points, (God is my Witness) though it be my Fortune to be the Anvil upon which these two Effects are broken and wrought, I take no small Comfort. But to pass from the Motions of my Heart (whereof God is my Judge) to the Merits of my Cause, whereof your Lordships are Judges, under God and his Lieutenant ; I do understand there hath been heretofore expected from me some Justification ; and therefore I have chosen one only Justification, instead of all others, out of the Justification of *Job*. For after the clear Submission and Confession which I shall now make unto your Lordships, I hope I may say, and justify with

Job, in these Words, *I have not hid my Sin, as did Adam, nor concealed my Faults in my Bosom.* This is the only Justification which I will use.

It resteth therefore, that without Fig-leaves I do ingeniously confess and acknowledge, that having understood the Particulars of the Charge, not formally from the House, but enough to inform my Conscience and Memory: I find Matter sufficient and full, both to move me to desert my Defence, and to move your Lordships to condemn and censure me. Neither will I trouble your Lordships by singling these Particulars which I think might fall off. *Quid te exempta juvat spinis de pluribus uva?* Neither will I prompt your Lordships to observe upon the Proofs where they come not home, or the Scruple touching the Credits of the Witnesses. Neither will I represent to your Lordships, how far a Defence might, in divers Things, extenuate the Offence, in respect of the time and manner of the Guilt, or the like Circumstances; but only leave these Things to spring out of your more noble Thoughts and Observations of the Evidence, and Examinations themselves, and charitably to wind about the Particulars of the Charge, here and there,